
Case	Title / Nature of Case
2:00 PM Line 1 24-CIV-00269	HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Defendants' Motion to Compel Further Responses to Form Interrogatories – General (Set One); Form Interrogatories – Employment (Set One); and for Monetary Sanction

TENTATIVE RULING:

Defendants David A. Brewer, Former NT Corp., Notify Technology Corporation, Paul F. DePond and Robert Polychron's Motion to Compel Further Responses to Form Interrogatories – General (Set One); Form Interrogatories – Employment (Set One); and for Monetary Sanction is DENIED without prejudice.

Here, Plaintiff, who is proceeding in propria persona, has not filed a consent to electronic service in this action, as noted in his limited and special opposition. The proof of service in the Court's file indicates service upon Plaintiff was made only by electronic service. (See Cal. Rules of Court rule 2.251(c)(3)(B) [self-represented parties are to be served by non-electronic methods unless they affirmatively consent].) Accordingly, the motion is DENIED without prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
